

Namibia 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Namibia during the year.

There were no credible reports of significant human rights abuses.

The government took credible steps to identify and punish officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media, and the government generally respected this right. An independent media, an effective judiciary, and a functioning democratic political system generally combined to promote freedom of expression, including for media members.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for the right to form and join independent trade unions, bargain collectively, and conduct legal strikes. The law prohibited antiunion discrimination. The law provided the labor commissioner with authority to terminate a trade union's registration in the event of continued noncompliance with the obligations of a registered trade union.

Except for workers providing designated essential services, such as in public health and safety, workers could strike once mandatory conciliation procedures lasting 30 days were exhausted and 48 hours' advance notice was given to the employer and the labor commissioner. Workers could take strike actions only in disputes involving specific worker interests, such as pay

raises.

The law provided employees with the right to bargain individually or collectively and provided for recognition of the exclusive collective bargaining power of a union when more than half of workers were members of that union. Employers had no obligation to bargain with minority unions. The law covered all formal-sector workers, including migrants, nonessential public-sector workers, domestic workers, and those in export-processing zones. The law on collective bargaining did not cover the informal sector.

The government effectively enforced labor law in the formal sector. In April, the Supreme Court fined an employer for defying a 2021 Labor Court order that forbade the employer from hiring seasonal staff to perform the work of employees who went on strike one month earlier. Penalties for violations of freedom of association, collective bargaining, and the right to strike were less than those of other violations, such as civil rights violations. Aside from mediation efforts, the government was not directly involved in union activities. The government and employers respected freedom of association, and workers exercised this right. There were no reports of employers interfering in union activities.

Collective bargaining was practiced widely in the mining, construction, agriculture, and public sectors. Almost all collective bargaining was at the workplace and company level. In August, representatives of the Namibia Food and Allied Workers Union concluded several weeks of negotiations

with Namibia Dairies resulting in wage adjustments.

Employers could apply to the Ministry of Labour, Industrial Relations, and Employment Creation (Ministry of Labour) for an exemption from certain provisions, such as overtime pay or working hours, if they were able to prove workers' rights were protected, but very few employers chose this option.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

During the year, the Ministry of Labour introduced a national minimum wage for all sectors, to be effective January 1, 2025. All sector-specific minimum wage rates were applied nationally and were above the poverty line.

The standard legal workweek was 45 hours, with at least 36 consecutive hours of rest between workweeks. By law, an employer could not require more than 10 hours' overtime work per week and was required to pay premium pay for overtime work.

Occupational Safety and Health

The Ministry of Labour mandated occupational safety and health (OSH) standards, and the law empowered authorities to enforce these standards through unannounced inspections and criminal prosecution. OSH standards were generally appropriate for the main industries in the country. The law required employers to provide for the health, safety, and welfare of their employees; the responsibility for identifying unsafe situations remained with OSH experts and not the worker. The law covered all employers and employees in the country, including the informal sector and individuals placed by a private employment agency (labor hire), except independent contractors and members of the Namibian Defence Force, the Namibia Central Intelligence Service, the Namibian Correctional Service, and police. By law, employees had the right to remove themselves from dangerous work situations, and authorities effectively protected employees in such situations. There was an adequate number of labor inspectors to enforce compliance. These inspectors had the authority to make unannounced inspections and initiate sanctions.

The Namibian Employers' Federation reported the most prominent offenses concerning employee rights and working conditions were in the informal sector, including for domestic workers, street hawkers, and employees in *shebeens* (common informal bars).

Wage, Hour, and OSH Enforcement

The government effectively enforced wage, hour, and safety standards laws in the formal sector but did not effectively enforce labor law in the informal sector. Penalties were commensurate with those for similar violations.

Penalties were sometimes applied in the formal sector but rarely applied in the informal sector. Inspections occurred proactively, in response to complaints, and at random. Due partially to difficulty in gaining access to some large communal and commercial farms and private households, labor inspectors sometimes found it difficult to investigate possible violations. Workers in the construction, agriculture, and mining sectors sometimes faced hazardous working conditions.

Media reported foreign firms failed to pay sector-established minimum wages and benefits in certain industries, respect work-hour regulations for Sundays and public holidays, and adhere to laws on hiring and firing. Additionally, they ignored OSH standards, for example, by requiring construction workers to sleep on site.

The government acted to prevent violations, investigated all complaints, and worked to resolve violations in favor workers.

The informal sector accounted for an estimated 58 percent of workers. Although the law applied to informal sector workers, it was seldom enforced.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The constitution and law prohibited arbitrary arrest and detention and provided for the right of any persons to challenge the lawfulness of their arrest or detention in court. The government generally observed these requirements.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or

Punishment

The constitution and law prohibited such practices, and there were no credible reports government officials employed them.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

The law prohibited marriage for boys and girls younger than age 18. The law was not effectively implemented or enforced. Illegal child marriages, including those of girls younger than age 15, were common, especially in rural areas.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

Provision of First Asylum

The law provided for the granting of asylum or refugee status, and the government had an established system for providing protection to refugees.

d. Acts of Antisemitism and Antisemitic Incitement

There was a Jewish community of fewer than 100 persons in the country, most of whom lived in Windhoek. There were no reports of antisemitic incidents.